

The Claremont City Council held a meeting on Wednesday, June 28, 2017, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Lovett at 6:00 p.m.

Members of the Council present were:

Ward I Councilor Carolyn Towle  
Ward II Councilor Scott Pope  
At-Large Councilor Keith Raymond  
Assistant Mayor Victor Bergeron  
Mayor Charlene Lovett  
At-Large Councilor Allen Damren  
At-Large Councilor Bruce Temple  
Ward III Councilor Nicholas Koloski  
At-Large Councilor John Simonds

Also present were:

Ryan McNutt, City Manager  
Jane Taylor, City Solicitor

**NON-PUBLIC SESSION PURSUANT TO RSA 91-A:3,II(d) – REAL ESTATE**

**At 6:01 p.m. a motion was made by Mr. Damren and seconded by Ms. Towle to enter non-public session pursuant to RSA 91-A:3,II(d) – Real Estate and to invite Planning and Development Director Nancy Merrill, Mr. McNutt, Ms. Taylor and Ms. Russell into the session.**

**Roll call vote: motion carried 9-0.**

**At 6:29 p.m. a motion was made by Mr. Pope and seconded by Mr. Damren to leave the non-public session and return to the public session.**

**Roll call vote: motion carried 9-0.**

**A motion was made by Mr. Bergeron and seconded by Mr. Raymond to seal the minutes because it is determined that divulgence of this information pertains to confidential financial information; such minutes to remain sealed unless and until the purpose for which the information discussed has been requested to be sealed no longer applies.**

**Roll call vote: motion carried 9-0.**

## **AGENDA CHANGES**

**A motion was made by Mr. Damren and seconded by Mr. Pope to suspend Council Rules to add Item K. Resolution 2017-48 Overspend Assessing Budget – Public Hearing.**

**Roll call vote: motion carried 9-0.**

## **MAYOR'S NOTES**

Mayor Lovett said that on July 19, at the Claremont Savings Bank Community Center (CSBCC), 5:30 p.m. to 7:30 p.m., there will be a training regarding screening and prevention of lead poisoning.

### Summer Meeting Schedule

Mayor Lovett said Ms. Russell, Council Clerk, will be out during the second meeting in July and she asked if Councilors would consider not having that meeting. However, if needed, they could meet.

There was a consensus of the Council not have the second Council meeting in July.

Mr. McNutt made some announcements:

- NH Housing Finance Authority was awarded a \$2.9 million grant for abatement of lead hazards in homes. More information to come.
- There is an opportunity for local contractors to get certified for lead abatement on July 7<sup>th</sup> at the CSBCC. For more information, stop by the City Manager's office.
- Efforts to de-lead our water system – service lines were replaced on Chestnut and Myrtle Streets; a 2-inch water main and service line were replaced on Little Lane; and a Washington Street service line was replaced.
- Police Department hired Steven Alex Lee, from NH State Police. He holds the rank of Captain.
- Children's Librarian position has been offered and accepted by Marta Smith. This is good for the Library, people and youth using the Library. There are many things that need to be done to make the Library more friendly and innovative and we will continue to work toward those efforts.

Ms. Towle mentioned an NHI Powers Up article in the Valley News saying it is a terrific article for the City of Claremont.

Mayor Lovett said that tonight would be the last Council meeting with City Attorney Jane Taylor, who was retiring after being with the City since 2003. Council presented Ms. Taylor with a plant and flowers. Mayor Lovett said Ms. Taylor has been involved in many City-related issues including several abatement cases, the gas plant cleanup, and RSA 79-E, Community Revitalization Tax Relief Incentive. She also attended many City board meetings.

## **CITIZEN'S FORUM**

Mayor Lovett read a letter from Patricia and Albert Leahy asking not to decimate the Library and that terminating Marta Smith would be a disservice.

Bernie Folta, Ward 3, gave his best wishes to City Solicitor Taylor. He has noticed the Council packets have shrunk and he considers that less communication/transparency. He was happy to see the Fraud Policy in the packet for discussion. He said 10 years ago the Library was a "morgue" and in that time, it has not improved. He said the Richards Library in Newport is a gallery and cultural center for Newport. He was happy to hear Mr. McNutt say the Claremont Library needs more innovation. He doesn't go to Library as it comes to him on his desktop.

Sylvia Howe, Claremont resident, said of the Fiske Free Library that she sees people working on computers, children in the Children's Library, people reading newspapers, people in the stacks of books. She said she can ask for books to be mailed to her home. The service is remarkable. She is delighted Marta is staying. The staff is courteous. She finds the Library to be a wonderful place for all people.

## **NEW BUSINESS**

### City Manager Contract

Mr. McNutt said the City is moving toward changing insurance payment plans from 95/5 and 90/10 to 80/20, so it would make sense for him to move that way. He asked to change his insurance to 80% (paid by the City)/20% (paid by him).

**A motion was made by Mr. Damren and seconded by Ms. Towle to amend the current contract for Ryan McNutt regarding insurance coverage from 90% (paid by the City)/10% (paid by him) to 80% (paid by City)/20% (paid by him).**

**Voice vote: motion carried 9-0.**

### Real Estate – North St., Map 107-319; Broad St., Map 120-156; and Broad St., Map 120-87

Nancy Merrill, Planning and Development Director, said the City-owned property, at the corner of North and Chellis Streets, map 107-319, is assessed at \$25,500. The City received two bids. Three City Staff reviewed the bids. The recommendation is to enter into a purchase and sale agreement with Randy Jacobs who owns an abutting property and the laundromat. He proposes to build a 30x40 2-story office building and create additional parking for the laundromat. The bid was \$13,500.

**A motion was made by Mr. Koloski and seconded by Mr. Simonds to authorize the City Manager or his designees to negotiate, execute and undertake all such actions as may be required to convey City-owned land located at Tax Map 107, Lot 319 (North Street) to**

**Randy Jacobs for \$13,500.00, and to accept all proceeds related thereto for deposit into the applicable City account.**

**Voice vote: motion carried 9-0.**

Ms. Merrill said Map 120-156 is the Broad Street church. One bid was received and the recommendation is to go back and get more information. The building requires a significant amount of fit-up and investment. Consensus of the Council.

Ms. Merrill said the third parcel Map 120-87 is the municipal parking lot behind the Goddard Emporium. The City has received a request from Kevin Lacasse for 17 parking spaces.

Kevin Lacasse, New England Family Housing, said he owns the Latchis Theatre across the street from the Goddard Block. The original plan changed when he saw the complete disrepair in the Goddard Block. There have been no improvements done since the 1980s. The plan is to gut the building to the studs. It will cost about \$4-\$5 million in renovations. He is working to get the funding from several places. For this building, there is a lack of available parking.

Mr. McNutt said Sullivan County is supporting Mr. Lacasse's efforts with a CDBG (Community Development Block Grant) grant.

Frank J. Barrett, Jr., Architect, said the bones of the building are good. It was built in 1926. The plan is to gut the building and put in all new systems and layouts in the building. Presently there are 24 apartments. The proposal is to put apartments on the second and third floors and to partition off the first floor. They will ask the ZBA (Zoning Board of Adjustment) to allow some residential on the first floor. They will keep store fronts on the Pleasant Street side and the back side will have dwelling units, a small manager's office, community room and entrance to the building. There will be 32 units made up of 2-bedroom, 1-bedroom and studio apartments. The issue is parking. The ordinance requires 1.5 parking spaces per dwelling unit. They feel it is adequate to have 1 space per unit and will ask the ZBA for a variance. With restriping, there could be 12 on-site spaces. On the back portion of the Goddard Block lot, they will develop landscaping, deck areas, and 3 handicap accessible parking spaces. Dumpster location will stay the same. On their property, they can get 15 spaces. They might be able to get some private spaces. His mission is to get some spaces from the City.

Bernie Folta, Ward 3, asked some questions about CDBG grants.

Ms. Merrill said there is a CDBG application being submitted through the City. It is on the agenda tonight. There are two pots of money, one for economic development and the other for social services. The City can apply for up to \$500,000 and the County can apply for up to \$500,000 a year.

Mr. McNutt said the County had a public hearing and Mr. Lacasse was the only applicant. This grant is for the full \$500,000.

Motion to Refuse Tax Deed

Ms. Taylor said that 101 Mulberry Street and the adjacent Topstone Building, Mulberry Street, were left off the list.

At 7:29 p.m., Mr. Koloski said that he is one of the tenants in the Topstone Building, so he recused himself and stepped down from the Council table.

Ms. Taylor said there is still an open DES (Department of Environmental Services) file on it with monitoring wells. There are significant City code issues in the building. The City doesn't want to be a landlord. With all those things put together, the recommendation is for the City to refuse the tax deed.

Mr. McNutt said about one and a half months ago they owed \$139,000 and at 18% interest, it is probably over \$140,000.

Ms. Taylor said for tax deeding purposes, they owe through the 2013 tax year, approximately \$68,000.

Mr. McNutt said the property owners are working to remediate issues with the building and there are paying tenants in there, so he thinks it is in the best interest of the City to keep them in there and working toward the cleanup.

Ms. Taylor pointed out the Goddard Bakery was acquired by the City 20 years ago and it is still being monitored.

**A motion was made by Mr. Raymond and seconded by Mr. Damren that the City Council, having reviewed the list of impending tax deed parcels as presented by the City's Tax Collector, hereby notifies the Tax Collector that she shall not execute a deed of the real estate to the City for the following parcels because the Council has determined in its judgment that acceptance would subject the City to undesirable obligations or liability risks, including the potential liability as an owner of property under state and federal law, which imposes strict liability on owners for environmental impairment of the real estate involved:**

|        |                     |
|--------|---------------------|
| 131-29 | 101 Mulberry Street |
| 131-30 | Mulberry Street     |

**The City Council further authorizes the Tax Collector or other City official to enforce all such tax liens upon the above-listed properties, as provided by RSA 80:50 and through any other remedy provided by law.**

Mayor Lovett asked to have a periodic update on this property.

**Roll call vote: motion carried 7-1 and 1 abstain (Mr. Temple voted no and Mr. Koloski recused himself).**

At 7:43 p.m. Mr. Koloski returned to the Council table.

Motion to Waive Tax Deed

Ms. Taylor said the previous list included mobile homes. Some of the properties that were refused are polluted sites. If you keep refusing to take them, the tax liability will continue to increase. There is not much you can do unless you want to take permanent responsibility to remediate those sites until “the end of time.”

Ms. Taylor said that City Clerk Gwen Melcher has talked to the individual property owners. If some were evicted, they may end up on the City’s Welfare rolls.

Ms. Taylor said the first eight on this list are mobile homes and they owe just a few hundred dollars. The last six properties are all owned by the same person and that person is attempting to refinance the properties which hasn’t gone through yet. If they don’t pay by the end of the year, they will go to tax deed.

Ms. Taylor said there will be a signed contract; they will pay a certain percentage up front and then the remainder is to be paid by the end of the year. If they don’t pay, the Council’s prior motion is still in effect.

**A motion was made by Mr. Raymond and seconded by Ms. Towle that the City Council, having reviewed the list of impending tax deed parcels as presented by the City's Tax Collector, hereby notifies the Tax Collector that she shall waive execution of a deed of the real estate to the City for the 2013 tax year for the following parcels until December 31, 2017 because the Council has determined in its judgment that execution of tax deeds for these parcels at this time would be contrary to the public interest:**

|            |                   |
|------------|-------------------|
| 159-56-2   | 7 Upham Place     |
| 159-56-17  | 8 Upham Place     |
| 159-56-20  | 14 Upham Place    |
| 159-56-13  | 35 Upham Place    |
| 57-21-29   | 29 Madison Place  |
| 57-21-32   | 34 Madison Place  |
| 129-141-12 | 5 Dennison Avenue |
| 129-141-10 | 9 Dennison Avenue |
| 82-21      | Foisy Hill        |
| 120-158    | 21 High Street    |
| 120-206    | 22 High Street    |
| 120-207    | 24 High Street    |
| 95-65      | 130 Elm Street    |

121-65

7 First Street

**Should the owners of the above-listed property be unwilling or unable to enter into payment terms agreeable to the City on or before July 21, 2017 and if all outstanding liens placed by the City on the above-listed property up to and including the 2013 tax year are not satisfied on or before December 29, 2017, the waiver of tax deed execution shall end and the tax deeds shall be executed to the City by the Tax Collector.**

**In the event the Tax Collector executes tax deeds on any of the above-listed properties, the City Council, pursuant to RSA 80:80, hereby authorizes the Mayor, or her designees, to transfer title to the listed real estate acquired as the result of default of redemption of nonpayment of taxes, by public auction or by advertised sealed bid or to dispose of all tax deeded property, unless refused, in such manner as justice may require, such authority to be effective indefinitely until rescinded.**

**The City Council further authorizes the Tax Collector to record at the Sullivan County Registry of Deeds all transfers of such property as may occur and further authorizes the City Manager or his designees to undertake all such actions as may be required to implement this motion.**

Mayor Lovett asked to update this in January.

**Roll call vote: motion carried 9-0.**

CDBG Public Facilities Grant Application

Ms. Merrill said the CDA, Claremont Development Authority, owns the Farwell Block, 46-54 Opera House Square. The Dental Center is on the lower level and it needs more space. The CDA is attempting to build out the upper level. It requires an elevator. There will be a feasibility study done to have the elevator for this building and for 56 Opera House Square (old Pleasant Restaurant). A study was done for a full fit-up of 56 Opera House Square for a long-term tenant for a downtown cultural arts center. The CDBG (Community Development Block Grant) piece is for the elevator.

Donna Lane, CDBG Consultant, said three consecutive public hearings are needed

Mayor Lovett opened the public hearing on the Proposed Sullivan County Oral Health Center Expansion CDBG Application.

Ms. Lane said Community Development Block Grant funds are available to municipalities through the NH Community Development Finance Authority. Up to \$500,000 annually is available on a competitive basis for public facility and housing projects, up to \$500,000 for economic development projects and up to \$350,000 for emergency activities. All projects must directly benefit low and moderate income persons. Up to \$12,000 per study is available for Planning Grants.

This is a proposed application to the Community Development Finance Authority for up to \$500,000 in Community Development Block Grant funds for the expansion of the Sullivan County Oral Health Center in Claremont. The expansion to include an elevator, a dental lab and the addition of new dental stations. Currently, the center services persons of primarily low and moderate income.

This project conforms with Claremont's Housing and Community Development Plan's Goal of: Plan for complementary services such as affordable daycare that allow families to participate in workforce, encourage other services that will benefit low and moderate income persons such as the expansion of the dental clinic and the Soup Kitchen, among others. (Short-term and Long-term goal).

Mayor Lovett asked if anyone from the public would like to comment. No one did. She closed the public hearing.

Mayor Lovett opened the public hearing on Housing and Community Development Plan.

Ms. Lane said this plan is over three years old and needs to be re-adopted. Change start a dental clinic to expansion of a dental clinic.

Mayor Lovett asked if anyone from the public would like to comment. No one did. She closed the public hearing.

Mayor Lovett opened the public hearing on Residential Anti-Displacement and Relocation Assistance Plan.

Ms. Lane said although this project does not involve any displacement or relocation of persons (or businesses), if the City were to undertake a CDBG project which involved displacement or relocation they would follow this plan. The plan outlines the measures they would take to find comparable, suitable housing for persons (or businesses) displaced or relocated. You have to adopt this plan for every CDBG project.

Mayor Lovett asked if anyone from the public would like to comment. No one did. She Closed the public hearing.

Motions

Housing and community development plan

- 1) Motion to Re-adopt City's Housing and Community Development Plan – Public Hearing

**A motion was made by Mr. Temple and seconded by Mr. Koloski to approve and re-adopt the City's Housing and Community Development Plan and further authorizes the City Manager to sign and execute all documents related to the Plan.**

**Voice vote: motion carried 9-0.**

Mayor Lovett said in the future she may want more information of what went into creating the Housing and Community Development Plan and how it ties to the Master Plan.

- 2) Motion to Adopt City's Residential Anti-Displacement and Relocation Assistance Plan – Public Hearing

**A motion was made by Mr. Pope and seconded by Mr. Raymond to approve and adopt the City's Residential Anti-Displacement and Relocation Assistance Plan and further authorizes the City Manager to sign and execute all documents related to the Plan.**

**Voice vote: motion carried 9-0.**

- 3) Motion to Approve Application for Grant – Public Hearing

**A motion was made by Mr. Temple and seconded by Mr. Simonds to approve the submission of a Community Development Block Grant (CDBG) application to the New Hampshire Community Development Finance Authority for expansion of the Sullivan County Oral Health Center in Claremont in an amount not to exceed \$500,000.00 (consistent with public hearing notice) and further authorizes the City Manager to execute all documents as may be required related to the CDBG application and if received, to any related CDBG contracts and any amendments thereto.**

**Voice vote: motion carried 9-0.**

NOTE: Information packets were available to the public.

Motion re: Northern Borders Commission Grant

Ms. Merrill said in the last seventeen months, the Dental Center extracted 3,269 teeth and were only able to replace 8% of those teeth and that is because they don't have a lab. With the expansion, they will be able to have a lab. She said CDA applied for a \$250,000 Northern Borders grant. It is going toward the overall project. It can go toward both buildings. A feasibility study was done and showed the price of the project at \$1.8 million. 56 Opera House Square is still in the City's name. If we are successful with the grants, a request will be made to transfer the building to the CDA and they will be the landlords. The City needs to agree to apply for the grant.

Melissa Richmond, Executive Director of the West Claremont Center for Music and the Arts, said they are beginning their 10<sup>th</sup> summer concert series next week. They started as a summer

concert series and then added music lessons for students and for adults. They provide instruments when needed. They want to expand, similar to the MakerSpace, to provide incubator space, culinary, event space, music school, hope to have a 24-hour location, practice runs, rehearsal spaces, artist spaces, teaching space for art programs, etc.

Mr. Raymond said he is on the CDA and thinks this is a great opportunity for Claremont. Being right next door to the Opera House and bringing the arts to downtown Claremont would be wonderful.

Mr. Koloski said he works in Portsmouth in the arts community and people are being priced out of that area, so they are looking toward Claremont. He said the arts are a major part of the Master Plan.

**A motion was made by Mr. Simonds and seconded by Mr. Damren to authorize the City Manager or his designee to execute and perform all actions as may be required on behalf of the City of Claremont or the Claremont Development Authority to apply for and, if awarded, accept a grant from the Northern Borders Regional Commission, said funds to be used for the redevelopment of buildings located at 46-54 and 56 Opera House Square.**

**Voice vote: motion carried 9-0.**

Resolution 2017-46 Moody Park Survey & Map – Public Hearing

By Resolution 2007-14, the City Council established a City Forest Management Fund (the Fund), pursuant to RSA 34:1-a, for the maintenance, operation and management of city-owned undeveloped land, to be funded by the proceeds from the sale of timber harvested according to the City's Forest Management Plan. The City Council finds that because, over time City-owned property has been added to the original parcel that created Moody Park, there is a need to survey and map the current boundaries of Moody Park. The City Council further finds that a survey and map of the current boundaries of Moody Park is the type of management of City-owned land intended by establishment of the Fund. This is to raise, appropriate and expend the sum of up to \$15,251.88 for surveying and mapping the current boundaries of Moody Park. This will have no impact on the tax rate.

Ms. Merrill said this was put out to bid and two bids were received.

Mark Brislin, Parks and Recreation Director, said this will finalize tying the two pieces of property together.

Mayor Lovett would like to know what the balance of the forestry fund will be after this money is taken out.

**A motion was made by Mr. Simonds and seconded by Mr. Damren to adopt Resolution 2017-46 Moody Park Survey & Map.**

Mr. Simonds read the resolution into the record.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

**Roll call vote: motion carried 9-0.**

Motion to Adopt Fraud Policy

Mary Walter, Finance Director, said this Fraud Policy will be used City-wide. Employees will sign it after Council approval.

**A motion was made by Mr. Koloski and seconded by Mr. Raymond to approve the City's Fraud Policy and further authorize the City Manager, or his designees, to undertake all actions that may be required to administer and implement the Policy.**

Ms. Taylor said this will go to all boards, commissions and employees.

Mr. Koloski asked what happens if a board member doesn't sign it. Ms. Taylor said board removal varies; it would be up to the board or appointing authority.

**Roll call vote: motion carried 9-0.**

Resolution 2017-47 Capital Reserve for Voter Equipment – Public Hearing

Ms. Walter said that City Clerk Gwen Melcher had received information that there are refurbished voting machines available for \$750, so she asked to change the dollar amount in the proposed resolution to \$250 to go to the Capital Reserve.

**A motion was made by Mr. Temple and seconded by Mr. Koloski to adopt Resolution 2017-47 Capital Reserve for Voter Equipment.**

Mr. Temple read the resolution into the record.

Mayor Lovett opened the public hearing.

Bernie Folta, Ward 3, said to make sure it's clean of malware.

Mayor Lovett closed the public hearing.

**Roll call vote: motion carried 9-0.**

Amended Resolution 2017-45 Rice Reservoir Spillway – Public Hearing

By Resolution 2007-14, the City Council established a City Forest Management Fund (the Fund), pursuant to RSA 34:1-a, for the maintenance, operation and management of city-owned

undeveloped land, to be funded by the proceeds from the sale of timber harvested according to the City's Forest Management Plan, excepting those funds that resulted from management of lands subject to the Water or Sewer Enterprise Funds, which monies were to be deposited into a separate reserve account. The City Council found that there is a need for maintenance and improvements to the Rice Reservoir Dam Spillway (the "Spillway") to protect the integrity of the Dam and the safety of the City's water supply. The City Council further finds that the maintenance and improvements to the Spillway is the type of management of City-owned land intended by establishment of the Fund and separate Water or Sewer Enterprise Funds reserve accounts. This is to raise, appropriate and expend the sum of up to \$150,000.00 for maintenance and improvements to the Rice Reservoir Dam Spillway. The City Manager, or his designees, are hereby authorized to withdraw the sum of up to \$150,000.00 from the Water Enterprise Fund reserve account for the purpose of maintenance and improvements to the Rice Reservoir Dam Spillway (to have no impact on the tax rate).

Ms. Walter said the first version of this resolution wasn't clear that the money was to come from Water reserve funds.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

**A motion was made by Mr. Simonds and seconded by Mr. Damren to adopt Amended Resolution 2017-45 Rice Reservoir Spillway.**

Mr. Simonds read the resolution into the record.

Mayor Lovett asked what the balance in the account will be after the money is taken out.

**Roll call vote: motion carried 9-0.**

Resolution 2017-48 Overspend Assessing Budget – Public Hearing

This is to overspend the Assessing Department 2017 Budget, as approved, by up to \$2,000.00 to cover unanticipated costs related to forester consultant on timber cuts. Such department over-expenditures shall not exceed the total bottom line appropriated for 2017.

Ms. Walter said there were a lot of timber cuts which increased the amount to be paid to the timber tax person. There is offsetting revenue. The bottom line of the City's budget will not be overspent.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

**A motion was made by Mr. Koloski and seconded by Mr. Simonds to adopt Resolution 2017-48 Overspend Assessing Budget.**

Mr. Koloski read the resolution into the record.

**Roll call vote: motion carried 9-0.**

## **FUTURE AGENDA ITEMS AND DIRECTIVES**

Mr. Damren said a policy is needed for the Water and Sewer reserve funds in July or August.

Mr. Damren said regarding the Topstone property that at some point it would make sense to get an estimate of the cost to cleanup that building.

Mr. Raymond asked about the status of the Rail Trail. Ms. Taylor said a letter was forwarded over the City Manager's signature and over the Town Manager of Haverhill's signature to the Congressional Delegation outlining what we would like to see done. She thinks the solution is at the Federal level. Mr. McNutt said he can scan and send that letter to the Council.

Mr. Pope said regarding the Council/School Board meeting, he would like to put childhood poverty on an agenda.

Mr. Pope would like an update from the Finance Committee.

Mr. Temple said he doesn't want to appear as though he is anti-cleanup, but regarding hazardous waste cleanup, the NH Department of Environmental Services has a way of raising fees to high levels. DES can require monitoring of monitoring wells for years. Council needs to pay attention to the bills and legislation in Concord.

Mayor Lovett would like to put on an agenda to amend Council Rule #2 which is more restrictive than NH state law with regard to noticing special meetings.

Mayor Lovett would like an analysis from Mr. McNutt's perspective regarding taking the boat landing back. Right now, it is in the state's jurisdiction. People can't use it because of the silt buildup.

Ms. Towle thinks the child poverty discussion should include all key players, including state Representatives. Mayor Lovett said it was outlined at the joint meeting that you have to understand the barriers.

Mr. Koloski said the first light on Park Avenue is flickering. Mr. McNutt said he would follow-up on it.

## **CONSULTATION WITH LEGAL COUNSEL**

Ms. Taylor said the FairPoint litigation has been settled and the terms were quite favorable for the City.

**NON-PUBLIC SESSION PURSUANT TO RSA 91-A:3,II(a) – PERSONNEL**

**At 9:12 p.m. a motion was made by Mr. Damren and seconded by Ms. Towle to enter non-public session pursuant to RSA 91-A:3,II(a) – Personnel, and to invite Mr. McNutt into the session.**

**Roll call vote: motion carried 9-0.**

**At 10:31 p.m. a motion was made by Mr. Temple and seconded by Mr. Simonds to leave the non-public session and return to the public session.**

**Roll call vote: motion carried 9-0.**

**A motion was made by Mr. Bergeron and seconded by Mr. Raymond to seal the minutes because it is determined that divulgence of this information regards a confidential personnel matter; such minutes to remain sealed unless and until the purpose for which the information discussed has been requested to be sealed no longer applies.**

**Roll call vote: motion carried 9-0.**

**ADJOURNMENT**

**At 10:35 p.m., the meeting adjourned.**

Respectfully Submitted,

Dorée M. Russell  
Clerk to the Council